

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
ANTOINETTE FLEMING,

Plaintiff

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER NICHOLAS RIVERA of the
44th Precinct, POLICE OFFICER JOHN DOE and
POLICE OFFICER RICHARD ROE,**

Defendants.
-----X

Index No. _____
Purchased _____
Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 29, 2019



JEFFREY W. RIZZO, ESQ.

Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, New York 10451
(718) 618-7509

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

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ANTOINETTE FLEMING,

Plaintiff,**Index No.
Verified Complaint****- against -**

**THE CITY OF NEW YORK,
POLICE OFFICER NICHOLAS RIVERA of the
44th Precinct, POLICE OFFICER JOHN DOE and
POLICE OFFICER RICHARD ROE,**

Defendants.

-----X

Plaintiff, ANTOINETTE FLEMING, by her attorney JEFFREY W. RIZZO, ESQ.,
principal, complaining of the Defendants, respectfully shows to this Court and alleges the
following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff ANTOINETTE FLEMING
("MS. FLEMING") was a resident of New York County, City and State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW
YORK ("CITY"), was and still is a municipal corporation organized and existing under
and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, Defendant POLICE OFFICER
NICHOLAS RIVERA ("RIVERA") was and still is a Detective or Police Officer
employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT
("NYPD").

4. On and prior to January 8, 2018, RIVERA was employed by Defendant CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

5. The actions of RIVERA described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendant CITY and NYPD, acting under the supervision of said department and according to their official duties.

6. At all times hereinafter mentioned, Defendant POLICE OFFICER JOHN DOE ("DOE") was and still is a Detective or Police Officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

7. On and prior to January 8, 2018, DOE was employed by Defendant CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

8. The actions of DOE described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendant CITY and NYPD, acting under the supervision of said department and according to their official duties.

9. At all times hereinafter mentioned, Defendant POLICE OFFICER RICHARD ROE ("ROE") was and still is a Detective or Police Officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

10. On and prior to January 8, 2018, ROE was employed by Defendant CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

11. The actions of ROE described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendant CITY and NYPD, acting under the supervision of said department and according to their official duties.

BACKGROUND

12. On or about January 8, 2018 RIVERA, DOE, and ROE acting as agents, servants and employees of Defendant CITY and NYPD, without just cause or provocation, intentionally and falsely accused MS. FLEMING of having committed the crime of Attempted Assault in the Third Degree (P.L. § 110/120.00) and related charges.

13. Prior to her arrest, MS. FLEMING was assaulted and injured by Beijing Hopkins.

14. Among the injuries MS. FLEMING suffered was a severed finger.

15. Members of the NYPD, including but not limited to RIVERA, DOE, and ROE, recovered the severed portion of MS. FLEMING'S finger.

16. Members of the NYPD, including but not limited to RIVERA, DOE, and ROE, failed to make any effort to preserve the severed portion of MS. FLEMING'S finger.

17. Members of the NYPD, including but not limited to RIVERA, DOE, and ROE, failed to notify MS. FLEMING that the severed portion of her finger had been recovered.

18. Members of the NYPD, including but not limited to RIVERA, DOE, and ROE, failed to notify medical personnel that the severed portion of MS. FLEMING'S finger was recovered.

19. After her arrest and while in NYPD custody, MS. FLEMING was transported to the 44th Precinct and then to Lincoln Medical Center.

20. While at the hospital the medical personnel and doctors attending to MS. FLEMING'S injuries repeatedly asked the NYPD officers present, if the severed portion of her finger was recovered.

21. The officers stated that they did not know if MS. FLEMING'S finger was recovered and took no further action.

22. The officers present at Lincoln Medical Center made no effort to inquire from other NYPD officers if MS. FLEMING'S finger was recovered.

23. As a result, the severed portion of her finger was unable to be reattached, resulting in the permanent loss of a portion of MS. FLEMING'S finger.

24. After being released from the hospital MS. FLEMING was transported to the 44th precinct.

25. While at the 44th precinct, she was fingerprinted and photographed.

26. MS. FLEMING was issued a Desk Appearance Ticket and was required to appear in Bronx County Criminal Court on March 21, 2018.

27. After MS. FLEMING was released from the 44th Precinct, she went to NYU Medical Center to receive additional treatment for her finger.

28. On March 21, 2018, MS. FLEMING appeared as required by the Desk Appearance Ticket. MS. FLEMING saw the Judge for her arraignment wherein she was released on her own recognizance and the case was adjourned to May 1, 2018.

29. On or about May 10, 2018, MS. FLEMING met with an Assistant District Attorney. During this meeting MS. FLEMING learned that members of the NYPD had in fact recovered the severed portion of her finger shortly after she was taken into custody.

30. NYPD never communicated or reported to MS. FLEMING or the medical personnel attending to her injuries that the severed portion of her finger was recovered.

31. On or about January 8, 2018, Defendants, their agents, servants and/or employees, intentionally placed MS. FLEMING under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

32. Thereafter, Defendants repeatedly gave false, misleading, and/or incomplete information to the Bronx County District Attorney's Office regarding the facts and circumstances of plaintiff's arrest.

33. Thereafter, Defendants repeatedly gave false, misleading, and/or incomplete testimony regarding the facts and circumstances of plaintiff's arrest.

34. On or about January 8, 2018 a criminal complaint was issued at the directive of Defendants, and a criminal action against MS. FLEMING was commenced.

35. On or about June 28, 2018 MS. FLEMING made a court appearance at which time the criminal matter was terminated in favor of MS. FLEMING, in that the case was dismissed and sealed.

36. As a result of the treatment of MS. FLEMING by the Defendants, MS. FLEMING was denied liberty by being falsely arrested, imprisoned and maliciously prosecuted.

37. MS. FLEMING suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested, falsely imprisoned, maliciously prosecuted and detained, MS. FLEMING suffered humiliation, fear for her safety and other emotional distress.

38. MS. FLEMING suffered physical injuries due to the conduct and/or omissions of Defendants.

PROCEDURAL POSTURE

39. On June 12, 2018, Plaintiff served a Notice of Claim in writing sworn to on her behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

40. On October 23, 2018, Plaintiff served a Supplemental Notice of Claim in writing sworn to on her behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

41. To the extent necessary for certain claims or causes of action, Plaintiff filed an application for permission to file a late Notice of Claim *nunc pro tunc* to a date within ninety (90) days of January 8, 2018 by way of Order to Show Cause.

42. The Order to Show Cause was heard on March 7, 2019 and was granted and the aforementioned Notices of Claim were deemed timely served.

43. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

44. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

45. Paragraphs 1-44 are incorporated by reference as fully set forth herein.

46. On January 8, 2018 at approximately 3:40 p.m., inside 1457 University Avenue, Bronx County, Defendants along with other NYPD officers wrongfully touched, grabbed, handcuffed, directed other officers to seize and seized MS. FLEMING, in an excessive manner about her person, causing MS. FLEMING physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff. MS. FLEMING was aware of her arrest and confinement as described in paragraphs 1-44, and she did not consent to that arrest or confinement, nor was it privileged by law.

47. As a result of being falsely arrested by the Defendants, MS. FLEMING sustained multiple injuries. She was denied liberty and the ability to enjoy life. She also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for her safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

48. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.

49. The Defendants, their agents, servants and employees, arrested and confined MS. FLEMING, as described in paragraphs 1-47, and intended to confine MS.

FLEMING. MS. FLEMING was conscious of her confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

50. As a result of being falsely imprisoned by the Defendants, MS. FLEMING sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for her safety.

THIRD CAUSE OF ACTION: MALICIOUS PROSECUTION

51. Paragraphs 1-50 are incorporated by reference as though fully set forth herein.

52. On or about January 8, 2018, and from that time until June 28, 2018 when Plaintiff's case was dismissed and sealed, the Defendants deliberately and maliciously prosecuted Plaintiff, an innocent woman, without any probable cause whatsoever, by filing or causing a complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.

53. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office, a Grand Jury and/or during a trial to induce prosecution of Plaintiff.

54. The commencement of these criminal proceedings under Docket No. 2018BX009526 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

55. As a result of being maliciously prosecuted by the Defendants, MS. FLEMING was deprived of her liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

FOURTH CAUSE OF ACTION: ASSAULT AND BATTERY

56. Paragraphs 1-55 are incorporated by reference as though fully set forth herein.

57. On January 8, 2018 at approximately 3:40 p.m., inside 1457 University Avenue, Bronx County, Defendants RIVERA, DOE, and ROE, along with other New York City police officers, wrongfully touched, grabbed, pushed, handcuffed and seized MS. FLEMING, in an excessive manner about her person, causing MS. FLEMING physical pain and mental suffering.

58. That on or about January 8, 2018, and while in the custody of the Defendants in the County of Bronx, City of New York, the Plaintiff MS. FLEMING was intentionally touched, grabbed, pushed, assaulted, violated, humiliated and handcuffed by RIVERA, DOE, and ROE, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

59. That on or about January 8, 2018, RIVERA, DOE, and ROE, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MS. FLEMING, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MS.

FLEMING and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner intentionally touched the plaintiff and/or made offensive bodily contact to MS. FLEMING and caused such battery in and about her chest, body and limbs. At no time did MS. FLEMING consent to the aforesaid assault and battery.

60. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving and/or grabbing of MS. FLEMING, was an assault and battery beyond that which was necessary to make the arrest.

61. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular RIVERA, DOE, and ROE, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MS. FLEMING suffered bodily injury in and about her body and limbs and suffered conscious pain and suffering, and that she was otherwise damaged.

FIFTH CAUSE OF ACTION: NEGLIGENCE

62. Paragraphs 1-61 are incorporated by reference as though fully set forth herein.

63. That at all times hereinafter mentioned, from the time of MS. FLEMING'S arrest until the time she was given a Desk Appearance Ticket and released from the precinct, MS. FLEMING was in the custody and control of defendants, their agents, servants and/or employees.

64. That at all times hereinafter mentioned, Defendants, had a duty of care to MS. FLEMING while she was in the custody of Defendants.

65. That the aforementioned actions and/or omissions of Defendants constituted a breach of that duty.

66. The aforementioned actions and/or omissions of Defendants occurred as a result of the negligence of the defendants without any culpable conduct on the part of the plaintiff.

67. That the Defendants were negligent, reckless and/or careless in the manner in which they treated and/or failed to treat the medical condition of Plaintiff; in failing to take action to prevent further injury to Plaintiff while she was in Defendants' custody; in failing to follow proper procedures and guidelines of the NYPD with respect to persons in Defendants' custody; in failing to properly communicate with medical personnel regarding Plaintiff's injury; in failing to properly communicate with Plaintiff regarding Plaintiff's injury; in failing to properly care for and safeguard Plaintiff's severed finger while in Defendants' custody; and in otherwise being negligent under the circumstances.

68. That, as a result of the negligence of the Defendants, MS. FLEMING was caused to sustain personal injury, serious and severe personal injuries, was rendered sick, sore, lame and disabled, experienced great pain and suffering, and was required to seek further medical treatment.

SIXTH CAUSE OF ACTION: NEGLIGENT RETENTION AND HIRING

69. Paragraphs 1-68 are incorporated by reference as though fully set forth herein.

70. That Defendant, CITY, was careless, reckless and negligent in hiring and retaining as and for its employees, Defendants RIVERA, DOE, and ROE., in that said defendant employees lacked the experience, deportment and ability to be employed by Defendant, CITY; in that Defendant, CITY failed to exercise due care and caution against its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendants, CITY; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant, CITY; in that defendants CITY, knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendants, CITY, their agents, servants and/or employees were otherwise careless, negligent and reckless.

71. Defendant, CITY, knew, or should have known in the exercise of reasonable care, the propensities of Defendants, RIVERA, DOE, and ROE., to engage in the wrongful conduct and/or act with deliberate indifference, heretofore alleged in this Complaint.

72. That by reason of the aforesaid, Plaintiff, MS. FLEMING, was injured in the mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and was rendered sick, sore, lame and disabled and so remains, will upon information and belief, be so incapacitated in the future by the actions and omissions of Defendants, their agents, servants and employees.

SEVENTH CAUSE OF ACTION: NEGLIGENT TRAINING AND SUPERVISION

73. Paragraphs 1-72 are incorporated by reference as though fully set forth herein.

74. The failure of Defendant, CITY, to adequately train, supervise discipline or in any way control the behavior of Defendants, RIVERA, DOE, and ROE,, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant, CITY, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff, MS. FLEMING. Further, Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

75. The failure of Defendant, CITY, to adequately train, supervise discipline or in any way control the behavior of Defendants, RIVERA, DOE, and ROE,, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant, CITY, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff, MS. FLEMING.

76. That by reason of the aforesaid, Plaintiff, MR. FLEMING, was injured in the mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and was rendered sick, sore, lame and disabled and so remains, was incapacitated from his usual occupation and will upon information and belief, be so incapacitated in the future by the actions and omissions of Defendants, their agents, servants and employees.

EIGHTH CAUSE OF ACTION:
FAILURE TO PROVIDE MEDICAL ATTENTION

77. Paragraphs 1-76 are incorporated by reference as though fully set forth herein.

78. Defendants were deliberately indifferent to the serious medical needs of MS. FLEMING, as she faced a serious medical need, she was not fully treated, and in fact, was told the severed portion of her finger was not recovered by Defendants, when it in fact was recovered and was in the custody and control of Defendants.

79. The Defendants were deliberately indifferent to the aforementioned medical needs, Defendants knew of said needs and disregarded them by failing to take reasonable measures to address said need, both while MS. FLEMING was in NYPD custody and thereafter.

80. The acts or failure to act of Defendants caused harm to MS. FLEMING, and as a result she suffered permanent injuries. Such failure to fulfill their duty to provide medical attention deprived MS.FLEMING of her rights.

NINTH CAUSE OF ACTION

81. Paragraphs 1-80 are incorporated by reference as though fully set forth herein.

82. Defendants, RIVERA, DOE, and ROE were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

83. At all times mentioned herein, RIVERA, DOE, and ROE, were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

84. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by Defendant, CITY.

85. Each and all of the acts of the defendants alleged herein were done by said Defendants while acting in furtherance of their employment by Defendant, CITY.

86. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of her civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

87. Plaintiff is and at all times relevant herein, a citizen of the United States and a resident of New York County in the State of New York.

88. Defendant CITY is a municipality duly incorporated under the laws of the State of New York.

89. On or about January 8, 2018 the Defendants, armed police, while effectuating the seizure of the Plaintiff, did search, seize, assault and grab the person of Plaintiff without a court authorized arrest warrant. They did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause.

90. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

91. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42

U.S.C. § 1983.

92. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

93. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

94. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

95. Defendants, collectively and individually, while acting under color of state law, ignored and disregarded exculpatory evidence.

96. It is the custom, usage, practice, procedure or rule of the respective municipality/authority to ignore and disregard such exculpatory evidence during the course of similar arrests and prosecutions, when an ordinarily prudent and reasonable police officer or detective would have investigated similar information prior to arrest and/or prosecution of MS. FLEMING.

97. Defendants, collectively and individually, while acting under color of state law, failed to conduct proper identification procedures in accordance with state law, federal law, and the Constitution of the United States, prior to falsely arresting and subsequently thereafter maliciously prosecuting, MS. FLEMING.

98. It is the custom, usage, practice, procedure or rule of the respective municipality/authority to fail to conduct proper identification procedures in accordance with state law, federal law, and the Constitution of the United States prior to falsely arresting and subsequently thereafter maliciously prosecuting, individuals such as MS. FLEMING, when an ordinarily prudent and reasonable police officer or detective would have conducted proper identification procedures prior to the arrest and/or prosecution of MS. FLEMING.

99. Defendants, collectively and individually, while acting under color of state law, failed to properly interview and question witnesses, including but not limited to the complaining witness, in accordance with state law, federal law, and the Constitution of the United States prior to falsely arresting and subsequently thereafter maliciously prosecuting, MS. FLEMING.

100. It is the custom, usage, practice, procedure or rule of the respective municipality/authority to fail to properly interview and question witnesses, including but not limited to complaining witnesses, in accordance with state law, federal law, and the Constitution of the United States, prior to falsely arresting and subsequently thereafter maliciously prosecuting, individuals such as MS. FLEMING, when an ordinarily prudent and reasonable police officer or detective would have properly interviewed and questioned witnesses, including but not limited to the complaining witness, prior to the arrest and/or prosecution of MS. FLEMING.

101. Defendants were deliberately indifferent to the serious medical needs of MS. FLEMING, as she faced a serious medical need, she was not fully treated, and in

fact, was told the severed portion of her finger was not recovered by Defendants, when it in fact was recovered and was in the custody and control of Defendants.

102. The Defendants were deliberately indifferent to the aforementioned medical needs, Defendants knew of said needs and disregarded them by failing to take reasonable measures to address said need, both while MS. FLEMING was in NYPD custody and thereafter.

103. The acts or failure to act of Defendants caused harm to MS. FLEMING, and as a result she suffered permanent injuries. Such failure to fulfill their duty to provide medical attention deprived MS.FLEMING of her rights guaranteed to her by 42 U.S.C. sec. 1983, and the Fourth, Eighth, and Fourteenth Amendments to the United States Constitution.

MUNICIPAL LIABILITY

104. Paragraphs 1-103 are incorporated by reference as though fully set forth herein.

105. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

106. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;

ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and

107. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

108. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

109. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

110. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully arrested and detained.

111. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

112. The acts complained of deprived plaintiff of her rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unlawful search;
- D. Not to have summary punishment imposed upon him; and
- E. To receive equal protection under the law.

F. To receive medical attention after being seized and while in the custody and care of Defendants.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
March 29, 2019

Yours, etc.,



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
718-618-7509

VERIFICATION

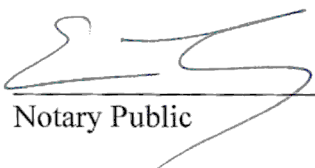
STATE OF NEW YORK)
COUNTY OF BRONX) ss:

ANTOINETTE FLEMING, being duly sworn, deposes and states that he is the individual Claimant in the within action; that he has read the forgoing Claim and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief; and that as to those matters he believes them to be true.



ANTOINETTE FLEMING

Sworn to before me, this 29th day of March, 2019.

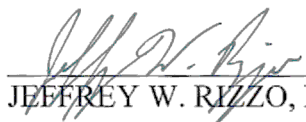


Notary Public

ERIC D. LEVY
Notary Public, State of New York
Qualified in Kings County
Reg. #02LE6258970
My Comm. Exp. April 9, 2020

CERTIFICATION

I, JEFFREY W. RIZZO, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).


JEFFREY W. RIZZO, ESQ.